Radheshyam Shah approached the Gujarat High Court to consider his premature release. That July, the HC observed that as he was tried in Maharashtra, as per Section 432 (7) of the CrPC, the 'appropriate government' for the purpose would be that state (the Bilkis case had been transferred there by the SC in 2004 after she got death threats, and the court feared it would be compromised in Gujarat). In August '19, Shah moved a plea before the Maharashtra home secretary but got no relief with the CBI, which prosecuted the case, submitting that he deserved no leniency. In January '20, the special CBI court, Mumbai, also gave a negative report, as did the superintendent of police in Dahod (the home base of the convicts in Gujarat).

Though the status quo showed no signs of changing too fast, the efforts kept up. In February '21, all of them began moving pleas for remission with the superintendent, Godhra sub-jail, in Gujarat, where they were incarcerated. Shah was still in pursuit of relief in Maharashtra, where the CBI special judge again put a damper on proceedings. In a March '22 opinion, the judge inferred that if Maharashtra rules were applied, the convicts would have to serve 28 years before remission (an April '08 resolution was cited for this).

But unbeknownst to most, things had started looking up for the convicts in between. In July '21, a jail advisory committee of Gujarat with 10 members—including four social workers, two MLAs, the Godhra SP and the district sessions judge—had met to discuss Shah's case. Except the judge, all the others recommended remission on the ground that Shah had completed 15 years in prison. The judge, in his opinion, said a premature release may create communal tensions.

According to the SC, when Shah approached it in May '22, seeking remission under Section 432 of CrPC, he suppressed the fact that he had already approached the Maharashtra government and his plea had been turned down in 2019. In fact, Shah's counsel also played a sleight of hand on another count—they wanted his release based on a 1992 Gujarat policy which allowed it for convicts who had served at least 14 years in jail (the policy had since been binned and a new one in 2014 had barred release of criminals convicted of heinous crimes).

That SC bench, comprising Justices Ajay Rastogi and Vikram Nath, allowed the appeal and asked the Gujarat government to consider the claim for premature release "in two months" based on the 1992 policy. It was based on this order that a Gujarat panel approved the release of all convicts in the Bilkis case. Not only did Shah and Co. walk out of jail on August 15, 2022, they were even feted, with local BJP units organising garlanding events.

The welcome wagon has since thinned out and the convicts, released on Independence Day, will see theirs end in a fortnight. A lot has happened in the 18 months they were free, including an assembly election in Gujarat which the ruling BJP won comprehensively, yet again. But another poll battle is round the corner, where the stakes are much higher.

Indeed, the state of play is such that it may put the BJP-led coalition government in Maharashtra in a spot. If the SC order prevails, the Bilkis case convicts will have to go back there and present their case again. Earlier, when they were released and subsequently garlanded, deputy chief minister Devendra Fadnavis of the BJP had walked the thin line of political ethics adroitly. He defended the release saying it was based on the "SC's orders" but also expressed disapproval at his fellow leaders in Gujarat praising the accused as "sanskari Brahmins". With the election noise heating up, often with communal questions at the centre, the resolve of many a big leader to say and do the right things will be tested. ■

TO JAIL AND BACK

- **In May 2022, a 'misguided' SC asks Gujarat to consider remission for Bilkis case convict Radheshyam Shah**
- **Gujarat govt cites order, arranges release for all 11 convicts from Godhra jail in Aug. '22**
- **Bilkis appeals to the SC, challenging the release of culprits**
- **On Jan. 8, 2024, the SC accuses the petitioners of "fraud", sends convicts back to jail**

NO REMORSE
Bilkis case convicts being feted in Dahod

